

FEDERAL MARITIME COMMISSION
Office of the Administrative Law Judges

AGRIBUSINESS HOLDINGS LIMITED PARTNERSHIP D/B/A
BRIDGEWELL AGRIBUSINESS, LLC, *Claimant*

v.

CMA CGM S.A., *Respondent*.

DOCKET NO. 2024(I)

Served: May 28, 2025

BEFORE: Theresa DIKE, *Small Claims Officer*.

INITIAL DECISION¹

I. INTRODUCTION AND SUMMARY OF DECISION

Claimant Agribusiness Holdings Limited Partnership d/b/a Bridgewell Agribusiness, LLC (“Bridgewell”) initiated this proceeding by filing an informal complaint at the Federal Maritime Commission (“FMC” or “Commission”) against CMA-CGM Group and CMA-CGM (America), LLC on December 17, 2024, alleging that they violated 46 U.S.C. §§ 41102(c), 41102(d)(2), and 41104(a) and (d) of the Shipping Act for failing to issue invoices for demurrage and detention charges they imposed against Bridgewell’s cargo. In addition, Bridgewell alleges that Respondent’s invoices failed to comply with section 41104(d)’s requirements regarding information that demurrage and detention invoices must contain, “and did not serve the FMC’s ‘Incentive Principle’” at 46 C.F.R. § 545.5 of the Commission’s Rules and Regulations.

On February 28, 2025, Bridgewell filed an Amended Claim which retained all allegations in the prior Claim but replaced CMA-CGM Group and CMA-CGM (America), LLC with CMA CGM S.A. (“CMA CGM”) as the sole respondent in the proceeding. Claimant seeks a reparations award in the amount of \$49,928.19 for payments it made for the charges in question.

A. Background and Procedural History

Between July 5, 2022, to December 30, 2022, CMA CGM transported Bridgewell’s shipments to various foreign destinations by ocean pursuant to a service contract between the parties. Some of those shipments incurred demurrage and detention charges, which Bridgewell paid and later initiated this proceeding against CMA CGM, alleging that the invoices issued for

¹ Pursuant to 46 C.F.R. § 502.304(g), this decision will become final unless the Commission elects to review it within 30 days of service.

the shipment did not comply with the requirements under section 41104 (a) and (d) of the Ocean Shipping Reform Act of 2022, 46 U.S. C. § 41104(a)-(d) (“OSRA 2022”), and the Commission’s statement at 46 C.F.R. § 545.5(c) that demurrage and detention practices should serve “their intended primary purposes as financial incentives to promote freight fluidity.” Bridgewell contends that it is thus entitled to a refund of its payments on those invoices.

On December 19, 2024, the Secretary of the Commission mailed a Notice of Assignment (“Notice”) together with a copy of Bridgewell’s Claim (“Complaint”) to CMA CGM and instructed CMA CGM to file a response to the Claim by January 13, 2025, and indicate whether it consented to the use of the Commission’s informal procedures at Subpart S for adjudication of the Claim. The Secretary also assigned this proceeding to the Chief Administrative Law Judge (“Chief ALJ”) to designate a small claims officer (“SCO”) to adjudicate the proceeding. On January 13, 2025, Respondents filed an Answer to Verified Complaint (“Answer”), consenting to the use of the informal procedures. In the Answer, Respondents stated: “With respect to the Respondent identified as the ‘CMA CGM Group’, CMA denies that such a legal entity exists . . . CMA further states that there is no legal entity named ‘CMA CGM Group’ that is affiliated with CMA CGM S.A. or CMA CGM (America) LLC. CMA believes that the identification of ‘CMA CGM Group’ as a respondent is an error and misnomer of CMA CGM S.A.” Answer, pg. 1-2.

On February 10, 2025, the Chief ALJ assigned this proceeding to the undersigned for adjudication. Pursuant to 46 C.F.R. § 502.304(a) and (e) of the Commission’s Rules of Practice and Procedure, which authorize the SCO in a Subpart S proceeding to request, if deemed necessary, additional documents or information from the parties, on February 27, 2025, the undersigned issued a Request for Additional Documents and Information (“RSI”) directing the parties to provide certain information and documents by March 27, 2025, and permitting any party wishing to file a response to the opposing party’s submission to do so by April 11, 2025.

In addition, the undersigned sua sponte granted Bridgewell permission to amend its Claim by March 5, 2025, should it choose, for the sole purpose of naming a proper respondent in response to Respondents’ contention that a legal entity by the name of “CMA CGM Group” does not exist. On April 28, 2025, Bridgewell filed an amended claim (“Amended Claim”), solely replacing CMA-CGM Group and CMA-CGM (America), LLC with CMA CGM S.A as the sole respondent in the proceeding. The Secretary served the amended complaint on CMA CGM on March 5, 2025.

On March 27, 2025, a response to the RSI was received from Bridgewell (“C. Supp. Info”) and from CMA CGM (“R. Supp. Info”). Additionally, on April 11, 2025, CMA CGM submitted a reply to Bridgewell’s response (“R Reply”). Claimant did not submit a reply to CMA CGM’s response. Accordingly, the record is now ripe for a decision.

As discussed in greater detail below, Claimant failed to prove its allegations against CMA CGM. Accordingly, the claims are dismissed, and reparations denied.

B. CMA CGM’s Request for Confidential Treatment

CMA CGM submitted two service contracts with Bridgewell – Service Contract Numbers 21-3053 and 22-8035 – in response to the RSI, for which it seeks confidential treatment

pursuant to 46 C.F.R. § 502.5(b). CMA CGM explains that the service contracts contain rates and other commercial terms that it keeps confidential in the ordinary course of its business. R. Supp. Info, pg. 2 at no. 1.

Commission Rule 5 authorizes confidential treatment for confidential commercial information. 46 C.F.R. § 502.5. The documents in question appear to contain confidential information thus, CMA CGM's request is reasonable. Accordingly, the request for confidentiality is granted.

C. Argument of the Parties

1. Claimant Bridgewell's Arguments

Bridgewell alleges that from July 5, 2022, through December 30, 2022, Respondent's invoicing practices for demurrage and detention (D&D) failed to comply with the strict requirements under OSRA 2022 and did not serve the Incentive Principle articulated at section 545.5. Amended Claim, pg. 1, at no. 7. Specifically, it alleges that Respondent unlawfully collected eleven payments from it for demurrage and detention charges totaling \$49,928.19 but failed to issue invoices for those charges, in violation of sections 41104(a)(15) and (d). Amended Claim, pgs. 1-2, at no. 8. It further alleges that "CMA engaged in conduct that was normal, customary, and continuous from July 2022, through December 30, 2022 ("the relevant period"), by collecting eleven payments from Bridgewell for detention and demurrage charges despite failing to issue invoices as required under OSRA 2022." C. Supp. Info., pg. 1 at no. 3. Further, Claimant alleges that its payments to Respondent for demurrage and detention during the relevant period "arose due to the unfair practices implemented by CMA in its response to supply chain and congestion issues in violation of the Shipping Act and the FMC's 'Incentive Principle,'" and that Respondent "took advantage of the fact that there were widespread issues across international and domestic supply chains and implemented unfair practices by demanding payment for D&D Charges despite failing to satisfy its legal and compliance obligations related to the D&D Charges to issue invoices under OSRA 2022 and to promote freight fluidity." C. Supp. Info., pgs. 2-3 at no. 6.

Bridgewell asserts that Respondent's "practice of failing to issue invoices for D&D charges but still demanding that Claimant make payments for uninvoiced and unsubstantiated D&D charges as a condition precedent to release Claimant's containers violates OSRA 2022, and it fails to satisfy the FMC's 'Incentive Principle' under the 'Interpretive Rule on Demurrage and Detention Under the Shipping Act' at 46 C.F.R. § 545.5, which requires such charges to serve 'their intended primary purposes as financial incentives to promote freight fluidity.'" Amended Claim, pg. 2 at no. 11 (emphasis in original).

Bridgewell avers that although it never received the invoices it nevertheless paid the charges totaling \$49,928.19 to Respondent through credit card payments "in accordance with notices that Claimant received through online portal systems to ensure the release of its cargo." Amended Claim, pg. 2 at no. 9. In addition, it alleges that "CMA's practices compelled Bridgewell to pay the D&D Charges without the transparency or visibility needed to evaluate the proper application of free time, charge accumulation, or options to dispute or mitigate fees," and that CMA CGM's failure to communicate with Bridgewell and to provide "the data elements

under OSRA 2022 . . . imposed an undue burden on Bridgewell where it could not manage its supply chain during an already challenging period.” C. Supp. Info., pg. 3 at no. 9. Bridgewell states that CMA CGM “only ever provided invoices as Exhibits to its Answer (“Exhibit Invoices”)” and even then, the Exhibit Invoices “do not align with the data, information, or actual D&D charges that Bridgewell paid to CMA from July 5, 2022, through December 30, 2022.” C. Supp. Info., pg. 2, at no. 5.

Further, according to Bridgewell, the Exhibit Invoices fail to comply with the requirements under 46 U.S.C. § 41104(d) because they fail to provide: i) the container availability date; ii) the allowed free time; iii) the start date for free time; iv) the end date of free time; v) the applicable detention or demurrage rule on which the daily rate is based; vi) the applicable rate or rates per applicable rule, vii) the email, telephone number, or other appropriate contact information for questions or requests for mitigation of fees; and viii) a statement that the common carrier’s performance did not cause or contribute to the underlying invoiced charges. C. Supp. Info., pg. 2 at no. 5

In addition, Bridgewell maintains that CMA CGM “took advantage of widespread congestion issues across international and domestic supply chains during the Relevant Period of Time in connection with D&D charges and decided to implement unreasonable and unfair practices in relation to receiving, storing, or delivering property as prohibited by 46 U.S.C. §§ 41102(c) and (d)(2).” Amended Claim, pg. 2 at no. 10.

Bridgewell contends that as a result of CMA CGM’s failure to issue invoices for the demurrage and detention payments in question, Bridgewell is entitled to a refund of the \$49,928.19 it paid for the charges. Amended Claim, pg. 2 at no. 12.

2. Respondent CMA CGM’s Arguments

In its response to the RSI, CMA CGM incorporated and adopted its answer and exhibits to the original Claim as its answer to the Amended Claim. R. Supp. Info., pg. 1. It asserts that: Bridgewell’s allegation that it failed to issue invoices for the charges are “unfounded;” several of the payments identified by Bridgewell were for charges other than demurrage and detention, including for ocean freight and customs fees; its invoices for demurrage and detention charges were fully compliant with section 41104 and OSRA 2022 requirements, and moreover, the invoices in question were issued at Bridgewell’s request to facilitate the retrieval of Bridgewell’s cargo from the terminal. Answer, pgs. 3-13.

In addition, CMA CGM avers that the documents it provided make clear that it was Bridgewell’s normal practice to request demurrage invoices from CMA CGM prior to retrieving its cargo so that all relevant fees could be paid, and any holds cleared prior to the motor carrier’s arrival at the terminal to pick up Bridgewell’s container. R. Supp. Info pg. 5 at no. 8. It maintains that because demurrage continues to accrue until a container is outgated, “[w]ithout an affirmative request from a customer to prepay demurrage, no event has occurred to trigger the creation of an invoice since the container is still accruing demurrage until it is outgated.” R. Supp. Info., pg. 6 at no. 8.

Further, CMA CGM notes that Bridgewell’s complaint does not allege that the underlying demurrage and detention charges for the invoices at issue are unreasonable, only that CMA CGM never issued invoices for the charges, which CMA CGM denies. R. Supp. Info pgs. 2-4 at no. 3. It reiterates: “Claimant has not, at any point, argued that the underlying demurrage and detention charges are unreasonable. Instead, it claims that these charges arose from some unspecified ‘unfair practice’ by CMA CGM in response to global supply chain issues in 2021 and 2022,” and CMA CGM opines that “Claimant’s naked assertion that ‘CMA took advantage of the fact that there were widespread congestion issues across international and domestic supply chains and implemented unfair practices by demanding payment for D&D Charges’ is unsupported by any actual facts.” R. Reply, pg. 3 at no. 6.

In addition, CMA CGM argues that at least three out of the eleven receipts for payment submitted by Bridgewell show payments made to an entity other than CMA CGM; Bridgewell fails to address CMA CGM’s emails showing not only that CMA CGM did invoice Bridgewell for the demurrage and detention charges, but also that the invoices were issued to Bridgewell at its request; and that Bridgewell “has completely failed to address CMA CGM’s evidence that at least two of the eleven charges were not even for demurrage and detention.” R. Reply pg. 2 at no. 3. CMA CGM further opines that “Claimant utterly fails to provide any actual specifics evidencing its allegations that CMA CGM’s conduct violated the Incentive Principle (or any other statute or FMC regulation).” R. Reply, pg. 3 at no. 6.

CMA CGM asks that Bridgewell’s claim be dismissed with prejudice and CMA CGM be awarded reasonable attorney fees and costs², as well as any further relief deemed just and proper. Answer, pg. 14.

II. PERTINENT FACTS ESTABLISHED BY THE RECORD (“PF”)

The Parties:

1. Claimant Bridgewell is a partnership located in Clackamas, Oregon. Amended Claim, pg. 1.
2. Bridgewell was the shipper and beneficial cargo owner of the shipments for which the eleven payments at issue were made. Amended Claim, pg. 1 at no. 6.
3. Respondent CMA CGM is a société anonyme³ registered under the laws of France with a principal place of business in Marseille, France. Answer, pg. 1 at no. 3.
4. CMA CGM is a vessel-operating-common carrier (“VOCC”). Amended Claim at pg. 2; *See generally* Answer, pg. 1 at no. 3 and exhibits to Answer; R. Supp. Info, pg. 2 at no. 1 and supplemental information exhibits.

² To recover attorney fees, the prevailing party must file a petition within 30 days after a decision becomes **administratively final**. *See* 46 C.F.R. § 502.254.

³ A société anonyme (“S.A”) is a French term for a public limited company (“PLC”) and is the equivalent of a corporation in the United States.

5. CMA CGM (America) LLC (“CMA CGM America”), whose principal place of business is in Norfolk, Virginia, acts at CMA CGM’s agent in the United States. Amended Claim, pg. 2; Answer, pg. 1 at no. 3.
6. Bridgewell and CMA CGM entered into service contracts for the transportation of Bridgewell’s cargo, including Service Contract 21-3053 and 22-8035, which were operative in the relevant time period. C. Supp. Info., pg. 1 at no. 1; C. Supp. Info Ex. at pgs. 1-32; Answer, pg. 1 at no. 1; R. Supp. Info., pg. 2 at no. 1; R. Supp. Info., Exs. 17 and 18.
7. Some of the shipments for which the eleven payments were made were transported under service contract numbers 21-3053 and 22-8035. R. Supp. Info., pg. 2 at no. 1; C. Supp. Info Ex. at pgs. 1-32.
8. The shipments were transported by CMA CGM from July 5, 2022, through December 30, 2022. Amended Claim, pg. 1 at no. 7; Answer Exs. 1-18.
9. Bridgewell made the payments at issue through PayCargo, APM Terminals, and ANL’s eBusiness Platform, which are third-party online portal systems for processing payments. Amended Claim, pg. 2, at no. 9.; C. Supp. Info pg. 3 at no. 8.

The Eleven Payments at Issue

10. The Eleven payments for which Bridgewell alleges CMA CGM failed to issue invoices total to \$49,928.19. Complaint, Ex.⁴ at pg. 5 (including a spreadsheet with a list of eleven charges summing to \$49,928.19).

First Payment Dated July 5, 2022, in the Amount of \$8,885.00

11. As proof of the first payment of \$8,885.00, Bridgewell submitted a document from APM Terminals Elizabeth, LLC titled “Payment Receipt,” Number CCEL1128924, dated 07/05/2022, for a payment in the amount of \$8,885 – “Paid Thru: 07/06/2022,” by Bridgewell for Demurrage for Bill of Lading SGN1562012, paid “to the Order of APM Terminals Elizabeth, LLC”. Complaint, Ex. at pg. 6.
12. Receipt Number CCEL1128924 shows that a payment was made to APM Terminals LLC (“APM Terminals”) for demurrage in the amount of \$8,885 by Bridgewell but not who assessed the charges. Complaint, Ex. at pg. 6.
13. Bridgewell indicates that APM Terminals’ online portal system identified the charge as Reference No. CMDUSGN1562012 and Container No. CMAU9076085. Spreadsheet at Complaint, Ex. at pg. 6, & n.1.

⁴ Citations to Complaint exhibits reference pages 5 through 16 of the pdf filed by Claimant as its initial complaint. Claimant did not reattach these exhibits to its amended complaint, filed April 28, 2025.

14. CMA CGM is one of the customers on whose behalf APM Terminal assesses and collects demurrage charges. Answer, pg. 3-4.

Second Payment Dated August 5, 2022, in the Amount of \$375.70

15. As proof of the second payment for \$375.70, Bridgewell submitted an email from “no_reply@cma-cgm.com” to a Marcela F Horning Palomino (“Marcela Horning”) titled “CMA CGM/ANL Receipt” showing that on August 5, 2022, Marcela Horning paid a total of \$375.70 by credit card, comprising a charge in the amount of \$363.00 and a credit card fee of \$12.70. Complaint, Ex. at pg. 7.
16. Marcela Horning is a Bridgewell employee. Answer, Ex. 2 (email address shown as mhorningpalomino@bridgewellab.com); *see also* Answer pg. 4 at no. 2.
17. CMA CGM submitted Invoice NAIM9645189 dated July 28, 2022, showing charges from CMA CGM America to Bridgewell in the amount of \$363.00, comprising \$75.00 for “40 HC C Scanning by customs, incl other examinations,” and \$288.00 for “40 HC C Scanning by customs, incl other examinations,” payable by July 30, 2022, for Bill of Lading SGN1630376, Container Number TLLU8789967; Place of Receipt: Ho Chi Minh City, Vietnam; Discharge Port: Seattle, Washington; Service Contract: 22-8035.

The invoice states at the bottom: “Review and Pay your invoices on our website, through My CMA CGM, via the Invoice Dashboard – <https://www.cma-cgm.com/products-services/ecommerce/finance> Click to register on My CMA CGM – <https://www.cma-cgm.com/ebusiness/registration/information#account-settings>.”

The invoice also contains the statement: “This invoice is issued in accordance with FMC detention & demurrage rules based on the information available to Carrier as of the date of this invoice. Carrier’s performance did not cause or contribute to the charges invoiced herein based on the information available to Carrier as of the date of this invoice. Disputes must be sent to usa.disputes@usa.cma-cgm.com within 30 days of invoice date.” Answer, Ex. 1.

18. The link provided on the invoice opens up a website page that provides an option to file a dispute with CMA CGM. The website also states: “***Dispute feature is not yet available worldwide. For more details, contact your local agent.” <https://www.cma-cgm.com/products-services/ecommerce/finance> (last visited May 1, 2025).
19. CMA CGM also submitted an email from Marcela Horning to CMA CGM and other Bridgewell employees dated August 5, 2022, titled “Exam Fees paid – NAIM9645789,” stating: “Exam fees are paid, Please release container immediately. Thank you.” Answer, Ex. 2 at pg. 2. CMA CGM responds the same day, stating: “Full release posted at the terminal. The LFD was yesterday so there may be demurrage. Thanks. For faster replies from IBVC please include the POD (Port of Discharge) in the subject line.” Answer, Ex. 2 at pg. 1 (Email from Mike Kerby from CMA-CGM America to mhorningpalomino@bridgewellab.com dated August 5, 2022, Subject: “Exam Fees paid – NAIM9645189”).

20. Invoice No. NAIM9645789 and the emails at Answer, Exs. 1 and 2 indicate that the payment for \$375.70 was made for customs examination, not for demurrage and detention charges, and that Bridgewell received the invoice for the charges (*see* email subject: NAIM9645189). Answer, Exs. 1 and 2.

Third Payment Dated August 5, 2022, in the Amount of \$745.20

21. As proof of the third payment in the amount of \$745.20, Bridgewell submitted an email from “no_reply@cma-cgm.com” to Marcela Horning titled “CMA CGM/ANL Receipt” showing that on August 5, 2022, Marcela Horning paid by credit card a total of \$745.20, comprising a charge of \$720.00, plus a \$25.20 credit card fee. Complaint Ex. at pg. 8.
22. CMA CGM submitted Invoice NAIM9695765 dated August 5, 2022, showing charges from CMA CGM America to Bridgewell in the amount of \$720.00, for Bill of Lading SGN1604387, Container Number TCKU4111153; Place of Receipt: Ho Chi Minh City, Vietnam; Discharge Port: Seattle, Washington; Service Contract: 22-8035. The invoice also contains the following information: Container Size/Type: 40ST; 4 Free Working Days; Total billable days: 3; Last Free Date: 02 Aug 2022; Tariff Type: General Tariff; Container Availability Date: 26-JUL-22; Start Event Date: 27-JUL-22; Discharged Full – SEATTLE, WA -SSA TERMINAL 18 – 1050 SW SPOKANE STREET, PIER 0018, SEATTLE, WA, 98134; From Date: 03-AUG-22; To Date: 05-AUG-22; Days: 3; Type: Calendar; Rate 240; Inv. Currency: USD; Inv. Amount: 720.00; Currency Charge Totals: 720.00.

The invoice states at the bottom: “Review and Pay your invoices on our website, through My CMA CGM, via the Invoice Dashboard – <https://www.cma-cgm.com/products-services/ecommerce/finance> Click to register on My CMA CGM – <https://www.cma-cgm.com/ebusiness/registration/information#account-settings>.”

The invoice also contains the statement: “This invoice is issued in accordance with FMC detention & demurrage rules based on the information available to Carrier as of the date of this invoice. Carrier’s performance did not cause or contribute to the charges invoiced herein based on the information available to Carrier as of the date of this invoice.” Answer, Ex. 3.

23. CMA CGM also submitted an email from Marcela Horning to CMA CGM and Bridgewell employees dated August 5, 2022, titled “Demurrage invoice request - TLLU8789967-TGHU5069645-TCKU4111153,” stating: “Dear CMA, Please provide demurrage invoices for the below:”

BL #	Container	Invoice Thru Date
SGN1630376	TLLU8789967	8/8

SGN1604385	TGHU5069645	8/8
SGN1604387	TCKU4111153	8/8

Answer, Ex. 4 at pg. 2 (emphasis in original).

CMA CGM responded the same day, stating: “Invoices for BLs SGN1604385 and SGN1604387 have been attached for your review. However for BL SGN1630376 please request from the terminal.” Answer, Ex. 4 at pg. 1 (Email from Setarius Whitaker from CMA-CGM America to mhorningpalomino@bridgewellab.com dated August 5, 2022, Subject: “Re: Demurrage invoice request -TLLU8789967-TGHU5069645-TCKU4111153”).

Marcela F Horning Palomino then follows up with another email to CMA CGM also, on August 5, 2022, stating: “I just paid it, Please help me release this ASAP, trucker is at gate. Thank you.” Answer Ex. 5 at pg. 1 (Email from Marcela Horning to usa.clientsolutions@cma-cgm.com dated, Subject: “RE: Demurrage Invoices paid - NAIM9695760-NAIM9695765”).

24. CMA Invoice No. NAIM9695765 and the emails at Answer Exs. 4 and 5 indicate that CMA CGM provided an invoice for Bill of Lading SGN1604387, Container Number: TCKU4111153 to Bridgewell at its request prior to the payment of the demurrage charges.

Fourth Payment Dated August 5, 2022, in the Amount of \$745.20

25. As proof of the fourth payment in the amount of \$745.20, Bridgewell submitted an email from “no_reply@cma-cgm.com” to Marcela Horning titled “CMA CGM/ANL Receipt” showing that on August 5, 2022, Marcela Horning paid by credit card a total of \$745.20, comprising a charge of \$720.00, plus a \$25.20 credit card fee. Complaint, Ex. at pg. 9.
26. CMA CGM submitted Invoice NAIM9695760 dated August 5, 2022, showing charges from CMA CGM America to Bridgewell in the amount of \$720.00, for Bill of Lading SGN1604387, Container Number TCKU4111153; Place of Receipt: Ho Chi Minh City, Vietnam; Discharge Port: Seattle, Washington; Service Contract: 22-8035. The invoice also contains the following information: Container Size/Type: 40ST; 4 Free Working Days; Total billable days: 3; Last Free Date: 02 Aug 2022; Tariff Type: General Tariff; Start Event Data: 27-JUL-22; Discharged Full – SEATTLE, WA -SSA TERMINAL 18 – 1050 SW SPOKANE STREET, PIER 0018, SEATTLE, WA, 98134; From Date: 03-AUG-22; To Date: 05-AUG-22; Days: 3; Type: Calendar; Rate 240; Inv. Currency: USD; Inv. Amount: 720.00; Currency Charge Totals: 720.00.

The invoice states at the bottom: “Review and Pay your invoices on our website, through My CMA CGM, via the Invoice Dashboard – <https://www.cma-cgm.com/products-services/ecommerce/finance> Click to register on My CMA CGM – <https://www.cma-cgm.com/ebusiness/registration/information#account-settings>.”

The invoice also contains the statement: “This invoice is issued in accordance with FMC detention & demurrage rules based on the information available to Carrier as of the date of this invoice. Carrier’s performance did not cause or contribute to the charges invoiced herein based on the information available to Carrier as of the date of this invoice.”

Answer, Ex. 6.

27. CMA CGM also submitted an email from Marcela Horning to CMA CGM and Bridgewell employees dated August 5, 2022, titled “Demurrage invoice request - TLLU8789967-TGHU5069645-TCKU4111153,” requesting that CMA CGM issue the demurrage invoice for Bill of Lading Number SGN1604385/Container Number TGHU5069645. CMA CGM remits the requested invoice the same day. Marcela Horning then followed up with an email the same day, confirming that Bridgewell had paid the demurrage and requesting release of the container. Answer, Exs. 4 and 5.
28. CMA Invoice No. NAIM9695760 and the emails at Answer Exs. 4 and 5 indicate that CMA CGM provided an invoice for Bill of Lading Number SGN1604385/Container Number TGHU5069645 to Bridgewell at its request prior to the fourth payment for demurrage in the amount of \$745.20.

Fifth Payment Dated August 5, 2022, in the Amount of \$351.90

29. As proof of the fifth payment in the amount of \$351.90, Bridgewell submitted a document titled “P-Card Bridgewell Agribusiness Purchase Card Missing Documentation” showing: Cardholder Name: Randy Petersen; Date Order Placed: 08/05/2022; Nature of Purchase: Internet Order; Amount of Purchase: 351.90; Detailed description of Purchase and Business Purpose: demurrage; Digitally signed by Randy Petersen Date: 2022.06.19 17:52:42 -07’00’. In the document there is also the statement:

This form should be completed and given to Reconciler when a purchase is made and a receipt is not immediately available (e.g. mail, phone or fax orders) or is lost. A receipt should always be requested and given to the Reconciler when received. Every purchase made with the T&E Card or P-Card requires receipt documentation. If for some valid reason you cannot obtain a receipt or you lost it, complete this form to use in lieu of a receipt.

Complaint, Ex. at pg. 13.

30. CMA CGM states that the payment for \$351.90 corresponds to CMA Invoice NAIM9651907 and was for customs charges, not demurrage. Answer, pg. 5-6 at no. 5.

Invoice NAIM9651907 from CMA CGM America to Bridgewell, dated July 29, 2022, shows a charge in the amount of \$340.00, comprising \$265.00 for “40ST C Scanning by

customs, incl other examinations,” and \$75.00 for “40ST C Scanning by customs, incl other examinations,” for Bill of Lading SGN16043877, Container Number TCKU4111153,” Place of Receipt: Ho Chi Minh City, Vietnam, Discharge Port: Seattle, Washington, Service Contract: 22-8035,

The invoice states at the bottom: “Review and Pay your invoices on our website, through My CMA CGM, via the Invoice Dashboard – <https://www.cma-cgm.com/products-services/ecommerce/finance> Click to register on My CMA CGM – <https://www.cma-cgm.com/ebusiness/registration/information#account-settings>.”

The invoice also contains the statement: “Disputes must be sent to usa.disputes@usa.cma-cgm.com within 30 days of invoice date.” Answer, Ex. 7.

31. Also, on August 5, 2022, CMA CGM advised Bridgewell: “For **B/L SGN1604387** we are awaiting for [sic] freight charges to be paid **\$340 NAIM9651907 before we can release**.” Answer Ex. 5 at pg. 2 (emphasis in original). The same day, Marcela Horning responds “Please see proof of payment and release containers at port. Thank you.”
32. Bridgewell did not deny CMA CGM’s claim that the payment for \$351.90 was for Invoice NAIM9651907 and that the payment was for customs charges.
33. Invoice No. NAIM9651907 and the emails at Ex. 5 indicate that the payment for Invoice NAIM9695760 was for customs charges and that CMA CGM remitted the invoice prior to Bridgewell’s payment. See Answer, Exs. 5 and 7.

Sixth Payment Dated August 18, 2022, in the Amount of \$200.00

34. As proof of the sixth payment in the amount of \$200, Bridgewell submitted an email from a Darby Ruscheinsky to a Cindy Brehl, with Marcela Horning copied, titled “Gate Payment 9-18-22,” stating: “Please see below receipt for gate payment.”

Purchase No: C0004294268

Purchaser: Jeanette Preez
Company: Bridgewell Agribusiness
Purchase Date: 2022-08.18 10 57
Item Subtotal: 270.00 USD
Fee Subtotal: 0.00 USD
Total: 270.00 USD

T18 ContainerFees

CMAU8785208 SGN1620522 T18 Line Demurrage Through 2022-08-19: 200.00 USD

TRPOAK ContainerFees

FDCU0556031 ONEY TRPOAK Import Gate Fee 35.00 USD

FFAU1864345 ONEY TRPOAK Import Gate Fee 35 USD

MAST Ending in 6096 Total: 270.00 USD

Complaint, Ex. at pg. 14.

35. Darby Ruscheinsky is a Bridgewell employee. See Answer Ex. 11 (showing Bridgewell email and contact information for Darby Ruscheinsky).
36. T18 refers to Terminal 18 in the Port of Seattle, which is operated by SSA Marine, Inc. Answer pg. 6 at No. 6fn.1, R. Supp. Info. pg. 5 at No. 7.
37. Nothing in the record demonstrates that CMA CGM assessed the charges in question or received the payment reflected this receipt.

Seventh Payment Dated September 21, 2022, in the Amount of \$732.78

38. As proof of the seventh payment in the amount in the amount of \$732.78, Bridgewell submitted a document titled "PayCargo Confirmation for Bill of Lading CMDUSGN1630380," showing a credit card payment totaling \$732.78, comprising a charge of \$693.00, shipper fee of \$15.00, and a processing fee of \$24.78. The document identifies the bill of lading number as CMDUSGN1630380; the Vendor/Biller as CMA CGM Group; the Payer as Bridgewellab Agribusiness LLC; the Payment Date as 09/21/2022, Description as TGHU5013190, Under a section at the bottom titled "History" are two bulleted notes: "* Created by Kristine Azure from Bridgewellab Agribusiness LLC on September 21, 2022 6:27 PM EDT" and "* Modified by ACH Process from PayCargo on September 27, 2022 6:02 PM EDT." Complaint Ex. at pg. 15.
39. The receipt for the seventh payment does not indicate whether the charges were for demurrage. According to CMA CGM the payment was credited towards outstanding freight charges shown in Invoice NAIM9616517, which was uploaded to Bridgewell's account on September 16, 2022, and emailed to BWIMPORT@BRIDGEWELLAB.COM. Answer, pg. 7 at no. 7 and Answer, Ex. 8.
40. CMA CGM submitted Invoice NAIM9616517 dated July 21, 2022, showing charges under Service Contract number 22-8035, from CMA CGM America to Bridgewell for Bill of Lading SGN1630380, Container Number: TGHU5013190, totaling \$8,182.00, comprising of: 40ST C BASIC FREIGHT- \$6,300.00; 40ST C Bunker surcharge NOS- \$669.00; 40ST C Container maintenance charge at destination -\$30.00; Export Declaration Surcharge-\$32.00; 40ST C Ocean Carrier-Intl Ship & port Facility Security- \$14.00; 40ST C Local port charges at destination - \$6.00; 40ST C Peak Season Adjustment Factor-\$600.00; 40ST C Peak Season Adjustment Factor 2 - \$431.00; 40ST C Pre carriage haulage - \$100.

The invoice states at the bottom: "Review and Pay your invoices on our website, through My CMA CGM, via the Invoice Dashboard – <https://www.cma-cgm.com/products-services/ecommerce/finance> Click to register on My CMA CGM – <https://www.cma-cgm.com/ebusiness/registration/information#account-settings>."

The invoice also states: “Disputes must be sent to usa.disputes@usa.cma-cgm.com within 30 days of invoice date.” Answer, Ex. 8.

41. Nothing in the record demonstrates that the seventh payment was for demurrage charges or contradicts CMA CGM’s statements that it applied the payment towards unpaid freight owed by Bridgewell.

Eighth Payment Dated September 21, 2022, in the Amount of \$732.78

42. As proof of the eighth payment in the amount of \$732.78, Bridgewell submitted a document titled “PayCargo Confirmation for Bill of Lading CMDUSGN1630382,” showing a credit card payment of \$693.00, a shipper fee of \$15.00, and a processing fee of \$24.78, totaling to \$732.78. The document identifies the bill of lading number as CMDUSGN1630382; the Vendor/Biller as CMA CGM Group; the Payer as Bridgewellab Agribusiness LLC; the Payment Date as 09/21/2022, Description as CMAU8001883, and the total amount as \$693.00. Under a section at the bottom titled “History” are two bulleted notes: “* Created by Kristine Azure from Bridgewellab Agribusiness LLC on September 21, 2022 6:31 PM EDT” and “* Modified by ACH Process from PayCargo on September 27, 2022 6:02 PM EDT.”
43. The receipt for the eighth payment of \$732.78 does not indicate whether the charges were for demurrage. According to CMA CGM, the payment was credited towards outstanding freight charges shown in Invoice NAIM9616518. Answer pg. 8 at no. 8 and Answer Ex. 9, uploaded to Bridgewell’s account on September 16, 2022, and emailed to BWIMPORT@BRIDGEWELLAB.COM. Answer pg. 7 at no. 7; R. Supp. Ex. 21.
44. Nothing in the record demonstrates that the eighth payment was for demurrage charges or contradicts CMA CGM’s statements that it applied the payment towards unpaid freight owed by Bridgewell.

The Three Remaining Payments – Ninth through Eleventh

45. Bridgewell provided no evidence substantiating that it made the ninth payment in the amount of \$1,793.83, dated 10/10/2022; the tenth payment in the amount \$15,825.00, dated 12/21/2022; or the eleventh payment in the amount of \$19,540.80, dated 12/30/2022, as alleged. *See* spreadsheet provided at Complaint, Ex. at pg. 5.
46. In the spreadsheet provided by Bridgewell in its original complaint, it lists in a column titled “Reference Nos.” the invoice number for the tenth payment of \$15,825.00 as NAIB0472567, and the container number for the underlying shipment as TEMU7860329. Complaint, Ex. at pg. 5. In a footnote under the spreadsheet Bridgewell states: “This ‘Reference Nos.’ column are those numbers identified in the notices that Bridgewell received through online portal systems, which include bills of lading, lines, references, descriptions, and the like.” Complaint, Ex. at pg. 5 n.1. This is the only listed payment that references an invoice number and the statement in the footnote does not sufficiently explain why there is an invoice number accompanying the payment when Bridgewell alleges that CMA CGM did not remit an invoice for the payment.

47. CMA CGM submitted an email thread including the tenth payment's container number as part of its exhibits. An email from Darby Ruscheinsky at Bridgewell, dated December 21, 2022, states: "Please provide a demurrage invoice for pickup of 12/27/22. MBL – CMDUSGN1697534 Container – TEMU7860329. Kindly confirm since the ports will be closed during the holiday, we will not accrue demurrage for those days." (Email from Darby Ruscheinsky to usa.clientsolutions@cma-cgm.com titled "Request Demurrage Invoice -CMDUSGN1697534.").

CMA CGM responds the same day:

Please see attached demurrage invoice **NAIB0472567 through 27-DEC-2022**. Please send proof of payment to us to process a release at the terminal. Payment Method Turn Around Time:
E-buisness – Payments are usually applied within 30 min sometimes less
PayCargo/SprintPay – We can manually approve and release with payment receipts – However payment posting and showing in our bank takes up to 24-48 hours
Wire/ACH – Takes up to 24-48 hours to post in our system before we can process a release
**For same day URGENT release, please call customer service after proof of payment send to CMA

Darby Ruscheinsky follows up the same day to CMA CGM: "We have paid the container on Paycargos please see attached invoice for reference." Answer, Ex. 11 at pgs. 4-6 (emphasis in original).

48. CMA CGM submitted Invoice NAIB0472567 dated December 21, 2022, showing charges from CMA CGM America to Bridgewell in the amount of \$15, 825.00, for Bill of Lading SGN1697534, Container Number TEMU7860329; Place of Receipt: Ho Chi Minh City, Vietnam; Discharge Port: Savannah, Georgia, Service Contract: 22-8035. The invoice also contains the following information:: Container Size/Type: 40 HC; 4 Free Working Days; Total billable days: 50; Last Free Date: 07 NOV 2022; Tariff Type: General Tariff; Container Availability Date: 1-NOV-22; Start Event Data: 2-NOV-22; Discharged Full – Savannah, GA -Garden City Terminal – 2 North Main Street, Savannah, GA, 31408; and Equipment Import Demurrage Charge totaling \$15, 825.00, comprising: \$1,200.00 for 5 calendar days of demurrage from November 8, 2022, to November 12, 2022, at a rate of \$240.00 per day; \$1,425.00 for 5 calendar days of demurrage from November 13, 2022, to November 17, 2022, at a rate of \$285.00 per day, and \$13,200 for 40 calendar days of demurrage from November 18, 2022, to December 27, 2022, at a rate of \$330.00 per day.

The invoice states at the bottom: "Review and Pay your invoices on our website, through My CMA CGM, via the Invoice Dashboard – <https://www.cma-cgm.com/products-services/ecommerce/finance> Click to register on My CMA CGM – <https://www.cma-cgm.com/ebusiness/registration/information#account-settings>."

The invoice also contains the statement: “This invoice is issued in accordance with FMC detention & demurrage rules based on the information available to Carrier as of the date of this invoice. Carrier’s performance did not cause or contribute to the charges invoiced herein based on the information available to Carrier as of the date of this invoice. Disputes must be sent to usa.disputes@usa.cma-cgm.com within 30 days of invoice date.” Answer, Ex. 10.

49. Invoice No. NAIB0472567 at Answer, Ex. 10, and the emails at Answer, Ex. 11 indicate that CMA CGM remitted Invoice No. NAIB0472567 for Container No. TEMU7860329 to Bridgewell at Bridgewell’s request, prior to the payment in the amount of \$15,825.00.
50. The spreadsheet provided by Bridgewell indicates that the bill of lading number for the shipment for which the alleged eleventh payment of \$19,540.80 was made was CMDUSGN1705845, and that the payment was made on December 30, 2022. Complaint, Ex. at pg. 5.
51. CMA CGM states that Bridgewell proactively made the eleventh listed payment before any charges were due for the shipment and then notified CMA CGM, which then applied the payments to amounts owed by Bridgewell - \$10,215.00 for demurrage under Invoice NAIB0508051, and \$8,650.00 for freight under Invoice NAIB0316275. Answer, pg. 9 at No. 11.
52. CMA CGM submitted an email from Darby Ruscheinsky from Bridgewell dated December 30, 2022, related to the eleventh payment, stating: “Please see attached demurrage invoice for BL CMDUSGN1705845 and release container.” Answer Ex. 14 at pg. 2 (email from Darby Ruscheinsky to usa.clientsolutions@cma-cgm.com, Subject: “Demurrage Invoice request – cont# TRHU8001379 BL CMDUSGN1705845”).

A document titled “PayCargo Approval Confirmation for Bill of Lading CMDUSGN1705845” related to the payment shows a credit card payment totaling \$19,540.80, comprising: \$18,865.00, plus a shipper fee of \$15.00, and a processing fee of \$660.80. The bill of lading number is listed as CMDUSGN1705845; the Vendor/Biller as CMA CGM Group; the Payer as Bridgewellab Agribusiness LLC; the Payment Date as 12/30/2022. At the bottom of the document are two notations: “* Created by Randal Petersen from Bridgewellab Agribusiness on December 30, 2022 6:12 PM EST” and “* Randal Petersen from Bridgewellab Agribusiness on December 30, 2022 6:12 PM EST.” Answer, Ex. 14 at pg. 5 and Ex. 15 at pgs. 3 and 6.

CMA CGM responds to Darby Ruscheinsky’s email four days later as follows:

Please send the demurrage invoice request to usa.clientsolutions@cma-cgm.com with the subject as “Demurrage Invoice Request” with BL, container number (s), and requested date through in the body of the email. Please advise which date you would like the invoice created through. This payment has no invoice to be applied to. Please request an invoice prior to making the payment. The current demurrage charges through today 01/03

is \$10,215.00. When calculating charges on our website we only go by the “storage” charges amount. Please let us know if you have any additional questions or concerns. Thank you.

Answer Ex. 15 at pgs. 1-2, 5 (email from Destanee Canady at CMA-CGM dated January 3, 2023, Subject: “RE: Demurrage Invoice request – cont# TRHU8001379 BL CMDUSGN1705845”).

The same day CMA-CGM follows up with another email to Darby Ruscheinsky, with other CMA-CGM staff copied, stating:

Hello Darby

It was a pleasure speaking with you. I have provided demurrage invoice for reference. For future, please request a demurrage invoice with the following format below prior to submitting payment

Hello Team,

Please assist with applying payment and assist with any overages.

Answer Ex. 16 at pgs. 3-6 (email from Brianisha Kelly of CMA-CGM, Subject: “RE: SGN1705845 -demurrage/release”). Darby Ruscheinsky replies: “Hi B.K, Thank you for your help. We will do this moving forward.” Answer, Ex. 16 at pgs. 3, 6, 7.

53. Also related to the eleventh alleged payment (*see* PFs 50 and 51), Invoice NAIB0508051, submitted as part of CMA CGM’s exhibits, contains the following information: Date: January 3, 2023, Bill of Lading: **SGN1705845**; Place of Receipt: Ho Chi Minh City, Vietnam, Discharge Port: Savannah, Georgia; Service Contract: 22-8035; Container Number: TRHU8001379; Container Size/Type: 40HC; 4 Free Working Days; Total billable days: 33; Last Free Date: 01 DEC 2022; Tariff Type: General Tariff; Container Availability Date: 25-NOV-22; Start Event Data: 26-NOV-22; Discharged Full – Savannah, GA – Garden City Terminal – 2 North Main Street, Savannah, GA, 31408; and Equipment Import Demurrage Charge totaling \$10,215.00, comprising: \$1,200.00 for 5 calendar days of demurrage from December 2, 2022, to December 6, 2022, at a rate of \$240.00 per day; \$1,425.00 for 5 calendar days of demurrage from December 7, 2022, to December 11, 2022, at a rate of \$285.00 per day; and \$7,590.00 for 23 calendar days of demurrage from December 12, 2022, to January 3, 2023 at a rate of \$330.00 per day.

The invoice states at the bottom: “Review and Pay your invoices on our website, through My CMA CGM, via the Invoice Dashboard – <https://www.cma-cgm.com/products-services/ecommerce/finance> Click to register on My CMA CGM – <https://www.cma-cgm.com/ebusiness/registration/information#account-settings>,” and

The invoice also contains the statement: “This invoice is issued in accordance with FMC detention & demurrage rules based on the information available to Carrier as of the date of this invoice. Carrier’s performance did not cause or contribute to the charges invoiced

herein based on the information available to Carrier as of the date of this invoice. Disputes must be sent to usa.disputes@usa.cma-cgm.com within 30 days of invoice date.” Answer, Ex. 12 (emphasis added).

54. CMA CGM did not provide a copy of Invoice NAIB0316275 (*see* PF 51) for freight owed in the amount of \$8,650, to which it claimed it applied the balance of Bridgewell’s payment of \$19,540.80 (after applying the \$10,215.00 owed for demurrage). Rather, Exhibit 13, which it provided as support, contains Invoice NAIB1720669, an invoice for an Equipment Import Demurrage Charge to Bridgewell dated December 21, 2023, in the amount of \$14,175.00 that is not a part of this case. Answer, Ex. 13.
55. The only information submitted by Bridgewell regarding the alleged ninth payment in the amount of \$1,793.83 was that it was made on October 10, 2022. Spreadsheet at Complaint, Ex. at pg. 5.

Dispute History for the Underlying Charges

56. Bridgewell paid the eleven charges at issue between July 5, 2022, and December 30, 2022, but it did not dispute the charges with CMA CGM until December 13, 2023, after first initiating a complaint with the FMC’s Office of Consumer Affairs and Dispute Resolution Services (“CADRS”). Submission by Bridgewell titled “Enclosures in Support of Bridgewell’s Responses to FMC’s Requests” (hereinafter “Bridgewell Supp. Info. Exs.”) at pg. 60.
57. On December 14, 2023, Bridgewell sent a letter by email to CMA CGM, stating:

Bridgewell has concerns about certain charges that it previously paid to CMA CGM Group and CMA CGM (America) LLC (collectively, “CMA”).

We recently filed a Form FMC-33 Dispute Resolution Services Request with the Federal Maritime Commission’s Office (the “FMC”) of Consumer Affairs and Dispute Resolution Services (“CADRS”). In response, CADRS recommended that we first seek to resolve this matter directly with CMA through the CMA CGM Detention and Demurrage Dispute Resolution Process (the “CMA DRP”). We wish to do so or to begin having a similar business-to-business conversation.

From March 15, 2022, through January 4, 2023, Bridgewell made [] seventy-four (74) payments totaling \$177,325.00 for detention and demurrage (“D&D Charges”) to CMA. The D&D Charges are shown on the enclosed Schedule of D&D charges. As described in the Claims Summary Sheet, Bridgewell believes that the D&D Charges either fail to comply with invoicing requirements under the Ocean Shipping Reform Act of 2022 or may amount to other unfair or unjustly discriminatory practices. Bridgewell would like

to explore the possibility of a business-business resolution of the disputed D&D Charges.

We look forward to your prompt response and invite a business-to-business discussion to explore whether this matter can be resolved under the CMA DRP.

Bridgewell Supp. Info. Exs. at pg. 60 (letter from Bridgewell CEO and Owner, Patrick R. McCauley to usa.disputes@usa-cgm.com dated December 14, 2023).

58. On December 18, 2023, usa.disputes@usa-cgm.com responded that it was “[a]dding @LongBeach - DDSM Disputes as they are currently the team handling disputes for (BRIDGEWELL AGRIBUSINESS LLC . . . they will assist from here).” Bridgewell Supp. Info. Exs. at pg. 60 (letter from usa.disputes@usa-cgm.com to Bridgewell with ddsmdisputes@cma-cgm copied) (emphasis in original).
59. On December 18, 2023, ddsmdisputes@cma-cgm sent a response to Bridgewell, asking in pertinent part: “From what I can see you are disputing these charges due to ‘congestion’. Given this information am I correct to assume that you are claiming you had trouble obtaining empty return appointments?” Bridgewell Supp. Info. Exs. at pg. 50 (email to Pat McCauley). Bridgewell responded in pertinent part:

None of the seventy-four (74) disputed payments Bridgewell made to CMA totaling \$177,325.00 were for congestion. Indeed, Bridgewell previously summarized the nature of the disputed payments, along with the dates and total amounts of those payments, in its Claims Summary Sheet as follows:

2. No invoices Issued – Bridgewell made seventeen (17) payments to CMA totaling \$85,788.40 for demurrage and detention charges where CMA failed to issue an invoice as required under OSRA. These unlawful charges have nothing to do with congestion and Bridgewell is entitled to a full reimbursement.

3. Non-Compliant Invoices – CMA issued forty-seven (47) invoices for demurrage and detention to Bridgewell that failed to contain all of the information OSRA requires for such invoices. Bridgewell paid all these unlawful invoices totaling \$85,175.00 and expects a full reimbursement. None of these invoices or payments are related to congestion.

4. Unfair Practices – Bridgewell made ten (10) payments to CMA for demurrage and detention totaling \$6,361.60 that arose due to CMA implementing unfair practices by taking advantage of widespread supply chain issues, including congestion. CMA’s unfair practices in response to these circumstances gave rise to these charges and Bridgewell is entitled to a full reimbursement for those payments as a result.

These disputed charges have nothing to do with congestion and this matter is overdue for a timely resolution. If CMA’s dispute resolution process does not prove helpful or will not assist with putting us in contact with the right persons to

have a business-to-business conversation, please note that our attorneys filed a matter that is pending with the FMC's Office of Consumer Affairs and Dispute Resolution Services.

Bridgewell Supp. Info. Exs. at pg. 50 (email from Pat McCauley to ddsmdisputes@cma-cgm, emphasis in original, Claims Summary Sheet omitted).

60. CMA CGM responded:

I have reviewed each invoice individually and found the following:

1. 38 Import Detention invoices met OSRA billing requirements.
2. 2 obligation numbers listed are NOT paid invoices, these were credit notes applicable to a cancelled invoice.
3. 7 Import Demurrage invoices were missing the equipment stop date, this was the date in which container out gated, the final date of billing.
 1. 7 Import Demurrage invoices were cancelled (invoices in RED).
 2. Applicable Import Demurrage charges rebilled (invoices in GREEN, rebills are attached).
 1. Rebilled invoices now reflect all necessary information and meet OSRA billing requirements.

There are now a total of 43 invoices in which have been reviewed and found to meet OSRA billing requirements.

If you would like to dispute those invoices further, you will need to advise the specific OSRA billing requirement you are claiming is missing and the specific invoice it is missing from.

Bridgewell Supp. Info. Exs. at pgs. 47-48 (email from ddsmdisputes@cma-cgm to Pat McCauley, emphasis in original, spreadsheets omitted).

61. Additional emails were exchanged between Bridgewell and CMA CGM from December 21, 2023, to January 10, 2024, with Bridgewell stating that it disagreed with CMA CGM's analysis of the payments Bridgewell made, and CMA CGM stating that it had reviewed all demurrage and detention invoices and found them to be in compliance with OSRA requirements and valid. Bridgewell Supp. Info. Exs. at pgs. 44-45

62. Bridgewell filed its small claims complaint on December 17, 2023. Complaint at 1.

III. DISCUSSION

A. Controlling Authority

Respondent CMA CGM is an ocean common carrier. "The term 'ocean common carrier' means a vessel-operating-common carrier." 46 U.S.C. § 40102(18).

A "common carrier" is a person that –

- (i) holds itself out to the general public to provide transportation by water of passengers or cargo between the United States and a foreign country for compensation;
 - (ii) assumes responsibility for the transportation from the port or point of receipt to the port or point of destination; and
 - (iii) uses, for all or part of that transportation, a vessel operating on the high seas or the Great Lakes between a port in the United States and a port in a foreign country
- ...

46 U.S.C. § 40102(7). The term “shipper” means –

- (A) a cargo owner;
- (B) the person for whose account the ocean transportation of cargo is provided;
- (C) the person to whom delivery is to be made;
- (D) a shippers’ association; or
- (E) a non-vessel-operating common carrier that accepts responsibility for payment of all charges applicable under the tariff or service contract.

46 U.S.C. § 40102(23).

Bridgewell alleges that CMA CGM violated section 41102(c), which provides: “A common carrier, marine terminal operator, or ocean transportation intermediary may not fail to establish, observe and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property.” 46 U.S.C. § 41102(c).

Pursuant to section 545.4 of the Commission’s Regulations, in order to establish a successful claim for reparations under section 41102(c), the claimant must demonstrate that:

- (a) The respondent is an ocean common carrier, marine terminal operator, or ocean transportation intermediary;
- (b) The claimed acts or omissions of the regulated entity are occurring on a normal, customary, and continuous basis;
- (c) The practice or regulation relates to or is connected with receiving, handling, storing, or delivering property;
- (d) The practice or regulation is unjust or unreasonable; and
- (e) The practice or regulation is the proximate cause of the claimed loss.

46 C.F.R. § 545.4.

Bridgewell also alleges that CMA CGM’s invoicing practices in connection with the disputed invoices “did not serve the FMC’s ‘Incentive Principle’ under the ‘Interpretive Rule on

Demurrage and Detention Under the Shipping Act’ at 46 C.F.R. § 545.5.” Section 545.5 provides:

- (a) *Purpose.* The purpose of this rule is to provide guidance about how the Commission will interpret 46 U.S.C. 41102(c) and § 545.4(d) in the context of demurrage and detention.
- (b) *Applicability and scope.* This rule applies to practices and regulations relating to demurrage and detention for containerized cargo. For purposes of this rule, the terms demurrage and detention encompass any charges, including “per diem,” assessed by ocean common carriers, marine terminal operators, or ocean transportation intermediaries (“regulated entities”) related to the use of marine terminal space (e.g., land) or shipping containers, not including freight charges.
- (c) *Incentive principle*—(1) *General.* In assessing the reasonableness of demurrage and detention practices and regulations, the Commission will consider the extent to which demurrage and detention are serving their intended primary purposes as financial incentives to promote freight fluidity.
 - (2) *Particular applications of incentive principle*—(i) *Cargo availability.* The Commission may consider in the reasonableness analysis the extent to which demurrage practices and regulations relate demurrage or free time to cargo availability for retrieval.
 - (ii) *Empty container return.* Absent extenuating circumstances, practices and regulations that provide for imposition of detention when it does not serve its incentivizing purposes, such as when empty containers cannot be returned, are likely to be found unreasonable. . . .

46 C.F.R. § 545.5. Bridgewell also alleges that CMA CGM violated section 41102(d)(2), which provides:

Retaliation and Other Discriminatory Actions.-A common carrier, marine terminal operator, or ocean transportation intermediary, acting alone or in conjunction with any other person, directly or indirectly, may not:

* * *

(2) resort to any other unfair or unjustly discriminatory action for-

(A) the reason that a shipper, an agent of a shipper, an ocean transportation intermediary, or motor carrier has-(i) patronized another carrier; or (ii) filed a complaint against the common carrier, marine terminal operator, or ocean transportation intermediary; or

(B) any other reason.

46 U.S.C. § 41102(d)(2) (2022).

In addition, Bridgewell alleges that CMA CGM violated section 41104(a)(15) and (d). Section 41104(a)(15) states:

(a) IN GENERAL – A common carrier, either alone or in conjunction with any other person, directly or indirectly, may not

*

*

*

(15) invoice any party for demurrage or detention charges unless the invoice includes information as described in subsection (d) showing that such charges comply with-

(A) all provisions of part 545 of title 46, Code of Federal Regulation (or successor regulations); and

(B) applicable provisions and regulations, including the principles of the final rule published on May 18, 2020, entitled “Interpretive Rule on Demurrage and Detention under the Shipping Act” (or successor rule).

Section 41104(d) provides:

(d) DETENTION AND DEMMURAGE INVOICE INFORMATION . -

(1) INACCURATE INVOICE. -If the Commission determines, after an investigation in response to a submission under section 41301, that an invoice under subsection (a)(15) was inaccurate or false, penalties or refunds under section 41107 shall be applied.

(2) CONTENTS OF INVOICE.-An invoice under subsection ((a)(15), unless otherwise determined by subsequent Commission rulemaking, shall include accurate information on each of the following, as well as minimum information as determined by the Commission:

(A) Date that the container is made available.

(B) The port of discharge.

(C) The container number or numbers.

(D) For exported shipments, the earliest return date.

(E) The allowed free time in days.

(F) The start date of free time.

(G) The end date of free time.

(H) The applicable detention or demurrage rule on which the daily rate is based.

(I) The applicable rate or rates per the applicable rule.

(J) The total amount due.

(K) The email, telephone number, or other appropriate contact information for questions or requests for mitigation of fees.

- (L) A statement that the charges are consistent with any of Federal Maritime Commission rules with respect to detention and demurrage.
- (M) A statement that the common carrier's performance did not cause or contribute to the underlying invoiced charges.

Pursuant to section 41104(f), "[f]ailure to include the information required under subsection (d) on an invoice with any demurrage or detention charge shall eliminate any obligation of the charged party to pay the applicable charge."

46 U.S.C. § 41104(a)(15), (d), and (f).

B. Evidence and Burden of Proof

"In all cases governed by the requirements of the Administrative Procedure Act, 5 U.S.C. 556(d), the burden of proof is on the proponent of the motion or the order." 46 C.F.R. § 502.203. A person alleging a Shipping Act violation, therefore, bears the burden of proof to demonstrate its allegations by a preponderance of the evidence. 46 C.F.R. § 502.203; 5 U.S.C. 556(d); *Maier Terminals, LLC v. Port Auth. of N.Y. & N.J.*, Docket No. 08-03, 2014 WL 9966245, at *14 (FMC Dec. 17, 2014). The term, "burden of proof" is understood to mean "the burden of persuasion." *Director v. Greenwich Collieries*, 512 U.S. 267, 276 (1994). When the party with the burden of persuasion produces sufficient evidence (characterized as a prima facie case), the burden of production shifts to the other party to produce evidence rebutting that case. *In re South Carolina State Ports Auth. for Declaratory Order*, Docket No. 94-24, 27 S.R.R. 1137, 1161 (FMC Aug. 12, 1997). *Steadman v. SEC*, 450 U.S. 91, 101 (1981) ("Where a party having the burden of proceeding has come forward with a prima facie or substantial case, he will prevail unless his evidence is discredited or rebutted."). When direct evidence is unavailable, inferences may be drawn from certain facts and circumstantial evidence may be sufficient so long as the fact finder does not rely on mere speculation. *Waterman S.S. Corp v. General Foundries, Inc.*, Docket No. 93-15, 26 S.R.R. 1173, 1180 (ALJ Dec. 9, 1993) adopted in relevant part, 1994 WL 279898, 26 S.R.R. 1424 (FMC June 13, 1994). If the evidence produced by both parties is evenly balanced, the party with the burden of persuasion will not prevail. *Greenwich Collieries*, 512 U.S. at 281.

Bridgewell's primary allegation is that CMA CGM failed to issue any invoices for the eleven payments at issue, alleged to be payments for demurrage and detention charges imposed by CMA CGM. Bridgewell further alleges that the failure to remit the invoices constitutes a violation of OSRA 2022 provisions, specifically, the provisions under sections 41102(c), 41102(d), 41104(a)(15) and 41104(d)(2), as well as the Commission's Regulation at 46 C.F.R. § 545.5. CMA CGM denies these allegations.

In order to reach the question of whether a violation of Section 41104(a)(15) or 41104(d) occurred, this decision will first determine whether it has been demonstrated that CMA CGM failed to remit the invoices at issue to Claimant, and whether CMA CGM's invoices for detention and demurrage failed to include mandatory information, as alleged by Claimant. Whether Claimant has supported its claim for a violation of Section 41102(c) and 41102(d) will then be separately considered.

C. Bridgewell Fails to Demonstrate CMA CGM Committed any Violations

1. Claimant Fails to Demonstrate that a Section 41104(a)(15) or 41104(d) Violation Occurred

Bridgewell first alleges that CMA CGM unlawfully collected eleven payments from it for demurrage and detention charges totaling \$49,928.19, but failed to remit invoices for those charges, in violation of section 41104(a)(15). Amended Claim pgs. 1-2, at no. 8. Bridgewell further asserts that CMA CGM only ever provided invoices in the exhibits that accompanied its Answer. C. Supp. Info, pg. 2 at no. 5. CMA CGM denies these allegations as unfounded, and notes that several of the payments identified by Bridgewell were not for demurrage or detention.

For the following reasons, I find that the evidence does not support Bridgewell's allegations:

i. There is No Evidence as to Who Assessed the Charges for the First, and the Sixth Payments, or that the Seventh or Eighth Payments were for a Demurrage Charge

The evidence shows that Bridgewell made the first alleged payment in the amount of \$8,885.00 to APM Terminals Elizabeth, LLC. However, it is unclear who assessed the demurrage charge. Similarly, the evidence shows that the sixth payment for \$200.00 was paid to Terminal 18 in the Port of Seattle, which is operated by SSA Marine, Inc. While the parties agree that CMA CGM is one of the customers on whose behalf APM Terminals and SSA Marine collect demurrage payments, without more, there is no basis to find that CMA CGM, rather than APM Terminals and SSA Marine, assessed the charges or that they did not remit the invoices for the charges to Claimant. *See* PFs 11-14, and 34-37. As Respondent notes: "There is nothing on the payment receipt that indicates whether the charges were those assessed by the terminal or those assessed by CMA. But it is clear that Bridgewell did not pay these charges to CMA, but instead paid them to a terminal." Answer Pg. 1 at No. 1. Moreover, Claimant does not allege that the charges were incorrect or unjust, it simply alleges that CMA CGM did not provide the invoice for the charges. If the charges were assessed by CMA CGM, it would have the duty to remit the invoice, however, if the terminals assessed the charges, it would have been their duty to remit the invoices for the assessed charges to Claimant.

It is also unclear whether the seventh and eighth payments, both dated September 21, 2022, and in the amount of \$732.78, were for demurrage charges. CMA CGM states that the payments were credited towards freight owed by Claimant and nothing in the record indicates that the payments were for demurrage charges or contradicts CMA CGM's statements that it applied the payments to unpaid freight owed by Bridgewell. *See* PFs 38-44.

ii. The Requirements Under Section 41104(a)(15) Do not Apply to the Second and the Fifth Payments

The evidence shows that the second payment in the amount of \$375.70, and the fifth payment in the amount of \$351.90, were for customs charges on the underlying shipment. PFs 15-20; Answer, Exs. 1 and 2; Answer, Exs. 29-33, Exs. 5 and 7 (showing charges for "40 HC Scanning by customs, incl other examination."). Thus, the provisions of section 41104(a)(15),

which address charges for demurrage or detention, do not apply to these payments. Moreover, the record shows that Bridgewell received the invoices for the customs charges prior to making the payments, contradicting Bridgewell's allegation that CMA CGM did not issue an invoice for the payments.

iii. Claimant Received Invoices for the Third, Fourth, Tenth, and Eleventh Payments

Regarding the third and fourth alleged payments, the evidence shows that Bridgewell requested and received the invoices for these two payments, both in the amount of \$745.20, from CMA CGM on August 5, 2022. PFs 21-24, Complaint Ex. at pg. 8, Answer, Exs. 3-4; and PFs 25-28, Complaint Ex. at pg. 9, Answer, Exs. 4-6.

The evidence also shows that Bridgewell requested and received the invoice for the tenth payment in the amount of \$15,825.00 from CMA CGM on December 21, 2022, PFs 45-49, Complaint, Ex. at pg. 5 (spreadsheet listing payments), and Answer, Ex. 11 at pgs. 4-6. In fact, Bridgewell's spreadsheet lists the invoice number for the payment of \$15,825.00. Respondent noted the contradiction posed by Bridgewell's inclusion of the invoice number for the payment while stating that an invoice was not remitted for the charges; while Bridgewell stated that it obtained information for the eleven payments at issue "through online portal systems," this statement does not sufficiently explain why Bridgewell has the invoice number for the tenth payment if, as it alleges, CMA CGM did not remit the invoice for the charge.

As for the eleventh payment in the amount of \$19,540.80, the evidence shows that Bridgewell proactively made the payment before an invoice was due in order to expedite the release and delivery of its shipment. PFs 50-53, Answer, pg. 9 at No. 11, Answer, Exs. 12, 14, at pg. 5, 15 at pgs. 1-6, 16 at pgs. 3, 6, 7. As CMA CGM correctly notes, because demurrage continues to accrue until a container is outgated, "[w]ithout an affirmative request from a customer to prepay demurrage, no event has occurred to trigger the creation of an invoice since the container is still accruing demurrage until it is outgated." R. Supp. Info pg. 6 at no. 8. In this case the evidence indicates that Bridgewell's representative simply paid an amount sufficient to clear the charges in advance, notified CMA CGM of the payment and CMA CGM then issued an invoice after the fact for Bridgewell's record keeping. The evidence also indicates that because the payment from Bridgewell was greater than the amount owed for demurrage CMA CGM applied the excess towards freight owed by Bridgewell. Thus, the evidence shows that CMA CGM also provided an invoice to Bridgewell's representative for this payment. Answer, pg. 9 at No. 11.

iv. No Evidence was Provided to Make a Determination as to the Ninth Payment

The record contains no evidence regarding the ninth payment and thus there is no basis to find that Claimant made a payment to CMA CGM in the amount of \$1,793.83, or that CMA CGM failed to issue an invoice for the charge. PF 55.

Therefore, Claimant fails to prove its allegations that CMA CGM did not provide the invoices for the eleven charges for which the payments at issue were made.

Section 41104(a)(15) and (d)

Claimant similarly fails to prove its allegations that CMA CGM violated the provisions of section 41104(a)(15) and (d), which state:

- (a) IN GENERAL – A common carrier, either alone or in conjunction with any other person, directly or indirectly, may not ...
 - (15) invoice any party for demurrage or detention charges unless the invoice includes information as described in subsection (d) showing that such charges comply with-
 - (A) all provisions of part 545 of title 46, Code of Federal Regulation (or successor regulations); and
 - (B) applicable provisions and regulations, including the principles of the final rule published on May 18, 2020, entitled “Interpretive Rule on Demurrage and Detention under the Shipping Act” (or successor rule).
- (d) DETENTION AND DEMMURAGE INVOICE INFORMATION. -
 - (1) INACCURATE INVOICE. -If the Commission determines, after an investigation in response to a submission under section 41301, that an invoice under subsection (a)(15) was inaccurate or false, penalties or refunds under section 41107 shall be applied.
 - (2) CONTENTS OF INVOICE.-An invoice under subsection ((a)(15), unless otherwise determined by subsequent Commission rulemaking, shall include accurate information on each of the following, as well as minimum information as determined by the Commission:
 - (A) Date that the container is made available.
 - (B) The port of discharge.
 - (C) The container number or numbers.
 - (D) For exported shipments, the earliest return date.
 - (E) The allowed free time in days.
 - (F) The start date of free time.
 - (G) The end date of free time.
 - (H) The applicable detention or demurrage rule on which the daily rate is based.
 - (I) The applicable rate or rates per the applicable rule.
 - (J) The total amount due.
 - (K) The email, telephone number, or other appropriate contact information for questions or requests for mitigation of fees.
 - (L) A statement that the charges are consistent with any of Federal Maritime Commission rules with respect to detention and demurrage.
 - (M) A statement that the common carrier’s performance did not cause or contribute to the underlying invoiced charges.

46 U.S.C. § 41104(a)(15) and (d).

As an initial matter, pursuant to section 41104(d)(1), refunds of demurrage and detention payments may be ordered if “the Commission determines, after an investigation in response to a submission under section 41310, that an invoice under subsection (a)(15) was inaccurate or false.” 46 C.F.R. § 41104(d)(1). Bridgewell does not allege, nor does the evidence show, that CMA CGM remitted inaccurate or false invoices to Bridgewell for the payments in question. The provisions of 41104(d)(1) do not thus apply in this case.

Bridgewell asserts that CMA CGM “only ever provided invoices as Exhibits to its Answer [and even those exhibits provided] do not align with the date, information, or actual D&D Charges that Bridgewell paid to CMA from July 5, 2022, through December 30, 2022,” and, therefore, that CMA’s collection of the payments was unlawful and violated section 41104(d). C. Supp. Info pg. 2, at no. 5. As the preceding analysis shows, this allegation is contradicted by the evidence. *See also* PFs 24, 28, 49, and 52-53. There are emails in the record documenting the requests from Bridgewell for the invoices in question and replies from CMA CGM to those requests, remitting the requested invoices. PFs 23, 27, 47, and 52. Bridgewell does not dispute the veracity of those emails.

Bridgewell next contends that the invoices provided by Bridgewell fail to comply with OSRA 2022 because, allegedly, they:

- i. Fail to provide the container availability date, as required under section 41104(d)(2)(A);
- ii. Fail to provide the allowed free time in days, as required under section 41104(d)(2)(E);
- iii. Fail to provide the start date of free time, as required under section 41104(d)(2)(F);
- iv. Fail to provide the end date of free time, as required under section 41104(d)(2)(G);
- v. Fail to provide the applicable detention or demurrage rule on which the daily rate is based, as required under section 41104(d)(2)(H);
- vi. Fail to provide the applicable rate or rates per the applicable rule, as required under section 41104(d)(2)(I);
- vii. Fail to provide the email, telephone, or other appropriate contact information for questions or requests for mitigation of fees, as required under section 41104(d)(2)(K);
- viii. Fail to provide a statement that the charges are consistent with any of Federal Maritime Commission rules with respect to detention and demurrage, as required under section 41104(d)(2)(L);
- ix. Fail to provide a statement that the common carrier’s performance did not cause or contribute to the underlying invoiced charges, as required under section 41104(d)(2)(M).

C Supp. Info. pg. 2 at no. 5.

A review of the demurrage invoices in the record show that they all contain:

1) The date the containers were made available (41104(d)(2)(A)); 2) the port of discharge (41104(d)(2)(B)) (all of them were within the United States); 3) the container numbers (41104(d)(2)(C)); 4) no earliest return dates because they were all imported from Vietnam (41104(d)(2)(D)); 5) the allowed free time in days (41104(d)(2)(E)); 6) the start date of free time (41104(d)(2)(F)); 7) the end date of free time (41104(d)(2)(G)); 8) the applicable demurrage rule on which the daily rate was based (a general tariff) (41104(d)(2)(H)); 9) the applicable rates per the applicable rule (41104(d)(2)(I)); 10) the total amount due (41104(d)(2)(J)); 11) the contact information for questions or requests for mitigation of fees (41104(d)(2)(K)) (link to CMA CGM website page - <https://www.cma-cgm.com/products-services/ecommerce/finance> – that opens up a page that provides an option to file a dispute with CMA CGM, and a subset of the demurrage invoices also included a statement that “Disputes must be sent to usa.disputes@usa.cma-cgm within 30 days of invoice date); 12) a statement that the invoices were “issued in accordance with FMC detention & demurrage rules based on the information available to the Carrier as of the date of this invoice” (41104(d)(2)(L)); and, 13) a statement that the “Carrier’s performance did not cause or contribute to the charges invoiced herein based on the information available to Carrier as of the date of this invoice.” (41104(d)(2)(M)). *See* PF 22, Answer Ex. 3; PF 26, Answer Ex. 6; PF 48 (Answer Ex. 10), and PF 53, Answer Ex. 12. Thus, they all contain the information required under section 41104(d).

Because the evidence shows that CMA CGM issued invoices for the relevant payments and that the invoices for demurrage in evidence all complied with the requirements under section 41104(a)(15) and (d), Bridgewell’s section 41104(a)(15) and (d) claims are dismissed.

2. Claimant Fails to Demonstrate a Section 41102(c) Violation

Bridgewell also alleges that CMA CGM violated section 41102(c), which forbids a common carrier, marine terminal operator, or ocean transportation intermediary to fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property. 46 U.S.C § 41102(c). To succeed in a claim for reparations under section 41102(c), the claimant must demonstrate that the respondent is an ocean common carrier, marine terminal operator, or ocean transportation intermediary; the alleged illegal conduct is “occurring on a normal, customary, and continuous basis; the alleged practice or regulation relates to or is connected with receiving, handling, storing or delivering property; the alleged practice or regulation is unjust or unreasonable; and, the alleged practice or regulation in question is the proximate cause of the loss the claimant alleges it suffered. 46 C.F.R. § 545.4. Failure to demonstrate any of these five elements precludes the finding of a section 41102(c) violation and award of reparations to the claimant.

Bridgewell’s contention that CMA CGM violated section 41102(c) rests on its allegation that CMA CGM failed to provide invoices for the eleven payments at issue. Although Bridgewell also alleges that CMA CGM “took advantage of widespread congestion issues across international and domestic supply chains during the Relevant Period of Time in connection with D&D charges and decided to implement unreasonable and unfair practices in relation to receiving, storing, or delivering property as prohibited by 46 U.S.C. §§ 41102(c)” (Amended Claim pg. 2 at no. 10), when asked to elaborate, Bridgewell asserted:

During a period of widespread supply chain congestion following the response to

COVID-19, CMA exploited the situation by implementing unreasonable and unfair practices related to the D&D Charges. Despite the clear mandate of Congress under OSRA 2022, CMA failed to issue invoices for the D&D Charges yet still demanded payment from Bridgewell through third-party online portal systems. CMA's practices compelled Bridgewell to pay the D&D Charges without the transparency or visibility needed to evaluate the proper application of free time, charge accumulation, or options to dispute or mitigate fees. By failing to communicate with Bridgewell and not providing the data elements required under OSRA 2022, CMA imposed an undue burden on Bridgewell where it could not manage its supply chain during an already challenging period. Despite this, Bridgewell paid the D&D Charges via credit card upon receipt of notices through online portal systems to ensure the timely release of its containers. Bridgewell provided the FMC with the only information available to it (*i.e.*, the enclosed evidence that Bridgewell made (11) payments for the D&D Charges). Asking Bridgewell to produce [sic] additional information to those eleven (11) payments requires Bridgewell to prove a negative despite the fact that CMA – not Bridgewell – acted unreasonably by failing to satisfy its legal obligation to issue invoices under OSRA 2022.

C. Supp. Info., pg. 3 at no. 9.

As Respondent correctly notes, Bridgewell does not allege that the demurrage and detention charges are, themselves, unreasonable. R. Reply pg. 3 at no. 6. When asked whether it disputed the charges with CMA CGM, Bridgewell responded in the affirmative but then only produced evidence showing that about a year after paying the charges it filed a complaint with CADRS and then contacted CMA CGM at CADRS' instigation, asserting that it was entitled under OSRA 2022 to receive a refund of all demurrage and detention payments it had made because it never received any invoices for the charges⁵.

There is no evidence that Bridgewell disputed the charges as unreasonable or that the containers were returned timely or could not be returned timely for reasons beyond Bridgewell's control. When asked to specify why the invoices did not serve the "Incentive Principle," Bridgewell replied:

CMA failed to issue any invoices for the D&D Charges that Bridgewell paid to CMA from July 5, 2022, through December 30, 2022. These D&D Charges arose due to the unfair practices implemented by CMA in its response to supply chain and congestion issue in violation of the Shipping Act and the FMC's "Incentive Principle" under the "Interpretive Rule on Demurrage and Detention under the Shipping Act" at 46 C.F.R. Part 545. Indeed, CMA took advantage of the fact that there were widespread

⁵ The evidence submitted by Bridgewell shows that it made a demand to CMA CGM for reimbursement for seventy-four payments totaling \$177,325.00. PF57, Bridgewell Supp. Info. Exs. at pg. 60 (letter from Bridgewell CEO and Owner, Patrick R. McCauley to usa.disputes@usa-cgm.com dated December 14, 2023). Bridgewell does not explain why its Claim only references eleven shipments.

congestion issues across international and domestic supply chains and implemented unfair practices by demanding payment for D&D Charges despite failing [to] satisfy its legal and compliance obligations related to the D&D Charges to issue invoices under OSRA 2022 and to promote freight fluidity. Bridgewell simply could not have disputed the D&D Charges (or CMA's failure to issue invoices) in real time under the circumstances, as charges would have continued to increase.

C Supp. Info. pg. 2-3 at no. 6. Bridgewell failed to specify any particular acts or conduct by CMA CGM that did not comply with OSRA 2022 requirements, or the Incentive Principle discussed at Section 545.5.

Further, while Claimant asserts that "CMA's practices compelled Bridgewell to pay the D&D Charges without the transparency or visibility needed to evaluate the proper application of free time, charge accumulation, or options to dispute or mitigate fees," it does not argue or show any evidence that it subsequently found the charges to be unfair or unreasonable or that CMA CGM forced it to pay the charges. Similarly, Claimant failed to provide evidence supporting its other allegation regarding unreasonable and unfair demurrage and detention practices by CMA CGM allegedly implemented "during a period of widespread supply chain congestion following the response to COVID-19," in order to "exploit[] the situation." Supp. Info. pg. 3 at no. 9. In fact, Bridgewell asserted to CMA CGM when it was seeking a refund of its demurrage payment that the "disputed charges have nothing to do with congestion." C Supp. Info. Exs. at pg. 50; PF 58.

Beyond its allegation that CMA CGM did not remit invoices for the payments for which it seeks a refund, Bridgewell did not point to any specific conduct by CMA CGM that was unfair or unreasonable. Moreover, as previously found, the evidence does not corroborate the allegation that CMA CGM failed to remit the invoices for those charges, which is the center of Bridgewell's claim for reparations. Thus, Bridgewell fails to demonstrate any practice or regulation by CMA CGM that was unjust or unreasonable. Even assuming that Bridgewell could demonstrate the other elements under 545.4, the failure to demonstrate a practice or regulation by CMA CGM that was unjust or unreasonable prevents a finding that CMA CGM violated section 41102(c). This claim is, therefore, also dismissed.

3. Claimant Fails to Demonstrate a Section 41102(d)(2) Violation

Claimant states that the alleged conduct by CMA CGM constitutes a violation of section 41102(d)(2), which forbids common carriers, acting alone or in conjunction with any other person, directly or indirectly, to:

- (2) resort to any other unfair or unjustly discriminatory action for-
 - (A) the reason that a shipper, an agent of a shipper, an ocean transportation intermediary, or motor carrier has-
 - (i) patronized another carrier; or
 - (ii) filed a complaint against the common carrier, marine terminal operator, or ocean transportation intermediary; or

(B) any other reason.

46 U.S.C. § 41102(d) (2022).

Section 41102(d) was promulgated as part of the Ocean Shipping Reform Act of 2022 (“OSRA 2022”), which revised portions of the Shipping Act. Its provisions are similar to pre-OSRA 2022 section 41104(a)(3), which provided: “A common carrier, either alone or in conjunction with any other person directly or indirectly, may not . . . retaliate against a shipper by refusing, or threatening to refuse, cargo space accommodations when available, or resort to other unfair or unjustly discriminatory methods because the shipper has patronized another carrier, or has filed a complaint, or for any other reason.” 46 U.S.C 41104(a)(3) (2021).

In an Order interpreting the provisions of section 41104(a)(3) the Commission noted that the section’s anti-retaliation provision prohibits a carrier from retaliating against a shipper by refusing, or threatening to refuse, cargo space accommodations when available because the shipper patronized another carrier, filed a complaint against the carrier, or for any other reason, as well as prohibits a carrier from resorting to other unfair unjustly discriminatory methods because: the shipper has patronized another carrier; the shipper has filed a complaint, or any other reason. Statement of the Commission on Retaliation, Docket No. 21-15, 3 F.M.C.2d 201, 206, 2021 WL 9204128 (FMC Dec. 28, 2021) (“Statement on Retaliation”).

No allegations coinciding with the Commission’s interpretation were made by Claimant, nor does the evidence show that any conduct occurred that would give rise to a violation of Section 41102(d). Claimant merely makes a bare allegation that CMA CGM “took advantage of widespread congestion issues across international and domestic supply chains during the Relevant Period of Time in connection with the D&D charges and decided to implement unreasonable and unfair practices in relation to receiving, handling, storing, or delivering property as prohibited by 46 U.S.C. §§ 41102(c) and (d)(2).” Amended Claim, pg. 2 at No. 10. When invited to elaborate on this allegation, Claimant asserted without corroboration that “[d]espite the clear mandate of Congress under OSRA 2022, CMA failed to issue invoices for the D&D Charges yet still demanded payment from Bridgewell through third-party online portal systems.” C. Supp. Info., pg. 3 at No. 9.

As previously found, the evidence does not demonstrate that CMA CGM failed to remit relevant invoices at issue or engaged in any conduct that was unfair or unjust. Additionally, Claimant does not allege or provide any evidence showing conduct by CMA CGM that was in any way discriminatory or retaliatory. Accordingly, Claimant’s section 41102(d)(2) is also dismissed.

Because Claimant fails to demonstrate that CMA CGM violated the Shipping Act, it is not entitled to recover reparations.

IV. CONCLUSION

Claimant Bridgewell fails to demonstrate that Respondent CMA CGM (America) violated the Shipping Act. Accordingly, it is hereby **ORDERED** that its request for reparations be **DENIED** and its claim be **DISMISSED WITH PREJUDICE**.

THERESA DIKE Digitally signed by THERESA DIKE
Date: 2025.05.28 16:09:05 -04'00'

Theresa Dike
Small Claims Officer